

FOREIGN JUDGMENT

- Sec. 2(5) - For. Court - court situated outside India, not est/court. ①
- Sec. 2(6) - For. J - J of for. C. by auth. of central govt. ②
- Sec. 13, 14, 44A
- Sec. 86 IEA

→ Rebuttable.

⑬, ⑭ R.J. w/ foreign Judgment - when conclusive.
Presumptⁿ as to for. J - court shall presume - on producⁿ of any doc. purporting to be a certified copy of a for. J, that such J. was pronounced by a court of competent jurisⁿ - unless contrary appears on record.

Such presumptⁿ may be displaced by proving want of Jurisⁿ.

→ 'Mandatory' - 'shall' - not 'may' or 'should' - no discretion.
→ Parties, title & issues same & directly adjudicated upon.

→ 'heard & finally decided' - for. J. will be conclusive.

⑮ - when not conclusive - ① not pronounced by court of competent jurisⁿ - BOP on party opposing.

- Competence - subject matter + w/ state that constituted it & in an int. sense.

- ② when not given on merits of the case + instances - E of parties not recorded, E recorded but J not based on such E, J was not a speaking J.
Indian court cannot examine the correctness of the E recorded.
- J is given on merits when after taking E & applying mind, Judge decides the case.
- merely because on paper decree - not necessarily w/o merits.
- Real test - merely formally passed as a matter of course or by way of penalty for conduct of defendant or based on consideration of truth/falsity of P's claim.

③ On face of proceedings, founded on incorrect view of inv. law / refusal to recognise law of India where applicable -

- Apparent mistake.

④ - lex loci contractus (law of place where contract made)
HMA - Hindu divorce.

④ proceedings in which J obtained, opposed to PNT.

- min. procedural req.

- impartial judge, fair proceedings, w/o bias, good faith, reasoned J. Opp. to hear to parties

Bias - nullity - Coram Non Judice

B/P

⑥ Founded on breach of Indian law - sustains a claim.

⑦ For J obtained by fraud - court was 'misled'.

→ Fraus Et Insuper Nunquam Cohabitant - fraud & Justice don't dwell together.

→ Fraus Et Dolus Nemini Patrocinari Debet - fraud & deceit benefit no one. → Certified copy of J. necessary.

4. Narainha Rao V. Venkata Lakshmi 1991 SC - divorce decree in US - summons suppressed, fake domicile shown - fraud. Decree of dissolution of mar. w/o juris? mar. not solemnised in US neither last resided in US. unreg.

Satya V. Tija Singh 1975 SC - Jurisdictional fraud.

*1 AV. Papayya Sastry V. AP 2007 SC - Fraud = Act of deliberate deception - design to secure unfair, undeserved benefit. Proceedings vitiated if act of fraud. No finality of litigation if used as appress? by fraudulent litigants.

SP Chengalwaraya Naidu V. Jagannath 1994 SC - J/decree obt. by fraud - nullity, non est in eyes of law. Even by highest court.

Must be actual fraud, not constructive i.e. intention to mislead. Mere concealment of fact is not suff. to avoid J.

- ** R. Viswanathan V. Rukn-ul-Mulk Syed Abdul Wajid 1963 -
 in deciding if J conclusive - Indian court will examine if conclusions supported by evidence or if E ^{NOT} correct.
 + if suit decided in FC, & pending suit in India - FJ will still be conclusive.

Jurisⁿ - subject matter & over the D.

- material date to decide jurisⁿ - time when suit is instituted.
- Voluntary submissⁿ of party to jurisⁿ of FC - Principle - taken chance of J in his favor by submissⁿ to FC - Estoppel, can't contend now that no jurisⁿ. → Express / Implied
- Submissⁿ to FC - Quesⁿ of fact.
- Want of Jurisⁿ v. Regular exercise of Jurisⁿ
↳ null decree ↳ decree not w/o jurisⁿ.
- Once conclusive - all adj. parts / issues are conclusive b/w parties, not strangers.

* Enforcement

Sic (44A) - Executⁿ of decrees passed by courts in reciprocating territory → Money decree only.

Expⁿ (1) - Reciprocating territory? - CG declares - any country / territory outside India. Expⁿ (2) - Decree? - D/J of such superior court w/ which a sum of money is payable - NOT taxes / other charges of like nature OR cost / fine / penalty.

NOT inc. arbⁿ award even if award exp. as D/J.

→ only money decrees are directly executⁿ in India. Other cases - suit to be filed in app. court & prove FJ.

① certified copy of decree of any superior court of any reciprocating territory filed in DC - executed as if passed by the DC.

② cert. copy + certificate of superior court stating extent to which decree satisfied / adjusted } conclusive proof of such satisfⁿ / adjustment.

③ executⁿ provⁿ from s. 47 - apply to DC, DC shall refuse execⁿ if fails u/s 13.